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File No.: EXP202307477

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 24, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against SNOW INK SIERRA NEVADA, S.L. with NIF B72273535 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant states that the respondent is responsible for an establishment that has surveillance cameras on its facade directed towards the public road.

Along with the notification, location images of the cameras are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out on June 2, 2023, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on June 13, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, being deemed completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail on June 13, 2023, which was duly notified on June 27, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

A response to this forwarding was received on July 21, 2023, where the respondent states that it has a contract with the company ***EMPRESA.1.

The system consists of 4 exterior cameras that, according to them, only capture the portion of the public road necessary for security purposes. They indicate that they have informative signs displayed. The images are viewed through an application on the responsible party's mobile phone.

They do not specify the retention time of the recorded images nor provide images of the cameras' field of vision.

They provide photographs of the cameras alongside which informative signs are visible and a copy of the contract signed with the company ***EMPRESA.1.

THIRD: On August 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity SNOW INK SIERRA NEVADA, S.L. (...)

FIFTH: On October 23, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, it

stated the following:

"In response to the initiation agreement of the sanctioning procedure received on October 24, 2024, a certificate issued by the company contracted to manage the surveillance of the establishment is attached, as well as a service provision contract, installation certificate, and an email from the company specifying the type of system installed, indicating that the volumetric detectors with camera only record images in case of intrusion, automatically deleting them after 30 days. Additionally, Clause 18 of the service provision contract regulates the duties and obligations of the parties regarding personal data protection, including the retention period of the images, which may add value to the file." Along with its written statement regarding the initiation agreement, it submitted:

- Installation certificate dated June 13, 2021, by which ***EMPRESA.1 certifies having installed a security system for the respondent.
- Security system contract signed between ***EMPRESA.1 and the respondent dated May 26, 2021.

SEVENTH: On December 10, 2024, it is proposed:

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That the Director of the Spanish Agency for Data Protection sanctions SNOW INK SIERRA NEVADA, S.L., with NIF B72273535, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €4000 (four thousand euros).

That the Director of the Spanish Agency for Data Protection orders SNOW INK SIERRA NEVADA, S.L., with NIF B72273535, to, pursuant to Article 58.2.d) of the GDPR, within one month, prove that it has proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images observed evidences that the public thoroughfare is not captured.

EIGHTH: On December 24, 2024, the respondent party sent the AEPD the following statements in response to the proposed resolution:

"FIRST. – Description of the events that occurred. Relevant data to take into account.

(...)

SECOND. – Decision adopted regarding this complaint.

(...)

THIRD. – Report on the measures adopted to prevent similar incidents from occurring.

(...)

FOURTH. GRADUATION CRITERIA IN LIGHT OF THE JUDGED FACTS.

(...)

Such statements are accompanied by the documents mentioned therein:

- Models for exercising rights of Access, Rectification, Deletion, Limitation, Portability, and Opposition, with instructions for exercising such rights.

- Certificate of installation dated June 13, 2021, and Security System Contract signed with ***COMPANY.1 dated May 26, 2021.

- Email from (...) (**EMAIL.1) dated November 6, 2024, addressed to the respondent party, stating: "(...)"

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- Consultation dated December 19, 2024, descriptive and graphic of the cadastral data of the property with cadastral reference ***REFERENCE.1 located at ***ADDRESS.1. The document states: "this

document is not a cadastral certification, but its data can be verified through the 'access to unprotected cadastral data of the SEC.'

- Images of the cameras and their location.

- Document titled "CCTV Installation Report" signed by the company ***COMPANY.2 certifying the following:

"(...)".

The certificate is not dated, although the images included in it are dated December 23, 2024.

- The new informative sign indicating the identity of the responsible party, their address, the identification of the data processor, the postal and electronic address for exercising rights regarding data protection, as well as the retention period of the images, among other aspects.

- Communication sent to the employees of the company on December 23, 2024, regarding awareness in data protection matters.

From the actions taken in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

FIRST: On the façade of the respondent entity, there are surveillance cameras oriented towards the public thoroughfare.

SECOND: The respondent party provides a service contract and installation certificate from ***COMPANY.1 certifying:

- That before starting the installation, a project was prepared, in accordance with technical criteria consistent with Standard UNE-CLC/TS 50131.

- That the material execution of the installation has been carried out in accordance with applicable standards.

The respondent entity claims that the type of surveillance system installed consists of volumetric detectors with a camera that only record images in the event of intrusion, automatically deleting the images after 30 days.

THIRD: On December 24, 2024, along with the allegations to the proposed resolution and, therefore, during the processing of this sanctioning procedure, it proves to have implemented privacy masks on the surveillance cameras oriented towards the public thoroughfare.

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FOURTH: The implementation of privacy masks in surveillance cameras is used to prevent excessive capture of certain spaces, such as public roads.

FIFTH: The data controller is SNOW INK SIERRA NEVADA, S.L. with NIF B72273535, the party being claimed.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Response to the allegations

In this case, the corresponding sanctioning procedure is initiated against the claiming party because

surveillance cameras are installed in their facilities that capture the public road.

In response to the proposed resolution, the claimed party states that the claiming party never contacted them when this prior contact before filing a complaint with the AEPD is mandatory as indicated on this Agency's website. In this regard, it is noted that the excerpt reproduced by the claimed party refers to complaints regarding the exercise of rights, as it is necessary to ensure compliance with Article 12.3 GDPR.

In any case, it is emphasized that, as stated in the second factual antecedent, prior to the admission of the complaint for processing and, therefore, to the opening of this sanctioning procedure, in compliance with Article 65.4 of the LOPDGDD, the complaint was transferred to the claimed party so that they could express and substantiate any matters they deemed appropriate.

Regarding the issue that the cameras were not installed privately, but by ***EMPRESA.1, a reputable company, it should be indicated that Article 4 of the GDPR defines "data controller" or "controller" as follows:

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natural or legal person, public authority, service, or other body that, alone or together with others, determines the purposes and means of processing; if Union law or the law of the Member States determines the purposes and means of processing, the controller or the specific criteria for their appointment may be established by Union law or the law of the Member States;

According to the previous definition, the respondent is responsible for the video surveillance system in its facilities as it is the one who determines the means and purposes of the processing of personal data, and must ensure that it complies with data protection regulations. In this regard, the Guidelines of the European Data Protection Board (EDPB) 07/2020 on the concepts of "data controller" and "data processor" in the GDPR state:

"20. (...) The data controller is the one who decides on certain essential aspects of the data processing. The responsibility for processing can be established in the regulations or inferred from an analysis of the facts or circumstances of the case. It is necessary to focus on the specific processing activities in question and understand who determines them. To do this, the following questions must first be examined: 'Why is the processing taking place?' and 'Who has decided that the processing should be carried out for a specific purpose?'"

Regarding the intention not to capture images of public spaces but rather to control access to the facility through the video surveillance system, it should be noted that in accordance with Article 5 of the GDPR, it is not possible to record public space without a duly justified cause, as cameras and video cameras installed for security purposes may not capture images of public space unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum necessary portion to preserve the safety of persons and property, as well as their facilities.

Thus, in no case will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Regarding the location of the cameras in an industrial estate, which, according to the respondent, implies a lower number of potential individuals whose rights may be affected and that the cameras are fixed, which implies less disruption than if they were mobile, it should be noted that the application of the data minimization principle in the area of video surveillance means that images of public space cannot be captured, regardless of the location of the captured public space. Furthermore, it is emphasized that the recording of images of public space can only be carried out by the Security Forces and Bodies with prior governmental authorization.

In its second allegation, the respondent states that there has been collaboration with the AEPD and that relevant information has been obtained from the installing companies, which would demonstrate an appropriate attitude. In addition, it asserts that during the processing

In the sanctioning procedure, measures have been adopted to align its actions with data protection regulations (implementation of privacy masks due to the impossibility of reorienting the cameras and adaptation of informational posters). In this regard, it is worth noting that Article 31 of the GDPR establishes, among the obligations of the data controller, that: “the controller and the processor and, where applicable, their representatives shall cooperate with the supervisory authority that requests it in the performance of its tasks.” Consequently, the party being claimed against has provided the necessary cooperation required by current regulations.

Furthermore, one of the fundamental pillars of the GDPR lies in the concept of proactive responsibility of the controller, who must adopt all appropriate technical and organizational measures to ensure that the processing is in compliance with data protection regulations, but must also be able to demonstrate it.

Thus, Article 24.1 of the GDPR states:

“Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary.”

Additionally, among the obligations of the data controller, the protection of data by design stands out, as outlined in Article 25.1 of the GDPR, which states:

“Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity that the processing entails for the rights and freedoms of natural persons, the controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing to meet the requirements of this Regulation and protect the rights of data subjects.”

Consequently, the cooperation actions and the adoption of measures carried out by the party being claimed against, necessary to adapt to current regulations, are part of the obligations that the GDPR establishes for data controllers.

On the other hand, it is worth noting that the measures now indicated have been adopted, as indicated and certified by the party being claimed against, during the processing of this sanctioning procedure. Specifically, the adoption of privacy mask measures, according to the report from the security company provided, was not carried out prior to December 23, 2024; for its part, the awareness email to employees was sent on December 23, 2024; and the

Modification of the informational posters following the notification of the resolution proposal.

This implies that, as of the date of notification of the agreement to initiate the present sanctioning procedure, the facts being attributed had already occurred. Furthermore, the accreditation of the measures adopted was not presented to this Agency until December 24, 2024, along with the allegations regarding the resolution proposal.

In this regard, it is emphasized that the fact that once the sanctioning procedure was initiated and the agreement to initiate was notified on October 24, 2024, documents were submitted on December 24, 2024, which certify the adoption of privacy masks on December 23, does not imply that an infringement that needs to be sanctioned has not occurred. The adoption of the measures, especially

those related to the installation of privacy masks, would only have the effect of negating the need to order a corrective measure to ensure adequate compliance with data protection regulations. In the third allegation, titled "Report on the measures adopted to prevent similar incidents," the responding party lists the actions taken by the company following the opening of the sanctioning procedure, such as the review and replacement of informational posters, the evaluation carried out by a specialized company to ensure compliance with Article 5.1(c) of the GDPR, the adoption of protocols for action in case of exercising rights by affected individuals, raising awareness about the importance of data protection, and the analysis of the company's adaptation to data protection regulations. In this sense, it is reiterated that such measures were adopted after the issuance of the agreement to initiate the present sanctioning procedure.

In its fourth allegation, the responding party presents the criteria for graduation that, according to it, should be taken into account in light of the "judged" facts. In particular, it highlights the absence of intent, the fact that measures would have been adopted if the complainant had previously approached the responding party, or that there is no prior infringement by the responding party. Furthermore, it considers that aggravating circumstances should apply because "no harm has been caused, and if there has been any, it is minimal." It also emphasizes the speed of the adoption of measures and asserts that it is the data controller who has breached its contract, although it does not provide evidence for this.

In response to this, it should be noted that it is the supervisory authority, namely the AEPD, which is responsible, in the exercise of its competencies as provided for, among others, in Articles 57 and 58 of the GDPR, to assess the severity of the facts, declare the infringement committed, and set the amount of the fine in accordance with current regulations and taking into account the Guidelines 04/2022 on the calculation of administrative fines contemplated in the GDPR, adopted by the EDPB on May 24, 2023.

Regarding the proposed fine amount (4,000 euros), it should be taken into account that we are discussing an infringement of Article 5.1(c) of the GDPR, that is, one of the principles of processing, so in accordance with Article 83.5 of the GDPR, the administrative fines to be imposed for such infringement can reach a maximum of twenty million euros or, in the case of a company, an amount...

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equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

Therefore, the AEPD considers that imposing a fine of 4,000 euros on the complained party, which has a turnover of (...), is within the parameters established by data protection regulations, as it represents (...) of their turnover.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data, stating:

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Data protection regulations

Article 5.1 c) of the GDPR states that personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present therein, as this would contravene Article 5 of the GDPR, as previously indicated.

V

Obligations regarding video surveillance

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In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of safeguarding the security of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

“Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means.”

- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.
- 4.- The images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

- 5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

Also of interest, in case of processing low-risk data, is the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum considered security measures.

VI

Administrative Infraction

The principle of data minimization contained in Article 5.1.c) of the GDPR states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims at. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

In this case, the video surveillance system of the responding party is located in a large building situated in an industrial estate, with access from several streets. The building has at least four cameras that record the external accesses to it.

However, the orientation of the cameras allows for excessive capture of the public road, including parked vehicles on the roadway, due to the narrow size of the sidewalk, as well as pedestrians.

Therefore, it is considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, constituting an infraction classified under Article 83.5 of the GDPR, which states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall be subject to a three-year statute of limitations."

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a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

VII

Sanction

In relation to the general conditions for the imposition of administrative fines, Article 83 of the GDPR, in its first paragraph, establishes the following:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

Furthermore, Article 83 of the GDPR in its second paragraph establishes that:

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Therefore, the fine must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, it is appropriate to calibrate the sanction to be imposed according to the criteria established in Article 83.5 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

In the case at hand, the aggravating factor of Article 83.2 a) of the GDPR applies, relating to “the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered,” since through the images provided regarding the location of the cameras, it is evident that these are located in an industrial estate and that they are focused on the intersection of two streets, with a facade line of many meters.

Moreover, the sidewalk that runs along the facade is of a reduced size, being very close to the area dedicated to vehicle parking, so the video surveillance system has a significant impact.

For all these reasons, it is considered that the corresponding sanction is an administrative fine in the

amount of 4,000 euros. It should be noted that the voluntary payment of the proposed amounts does not exempt from proving the regularization of the video surveillance system in accordance with the current regulations.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on SNOW INK SIERRA NEVADA, S.L., with NIF B72273535, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 4,000 euros (FOUR THOUSAND euros).

SECOND: TO NOTIFY this resolution to SNOW INK SIERRA NEVADA, S.L.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

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The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day

following the notification of this resolution, it will consider the provisional suspension to be concluded.

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16/16

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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